

PART IV.

ENACTMENTS REPEALED AS FROM THE COMMENCEMENT
OF THIS ACT.3RD SCH.
—cont.

Session and Chapter.	Short Title.	Extent of Repeal.
59 & 60 Vict. c. 28.	The Finance Act, 1896.	Section twenty (except as regards persons dying before the commencement of this Act).
10 Edw. 7. & 1 Geo. 5. c. 8.	The Finance (1909– 10) Act, 1910.	Section sixty-three (except as regards persons dying before the commencement of this Act).
11 & 12 Geo. 5. c. 32.	The Finance Act, 1921.	Section forty-four (except as regards persons dying before the commencement of this Act).
11 & 12 Geo. 5. c. 47.	The Safeguarding of Industries Act, 1921.	In subsection (2) of section one the words “not being duties “chargeable under Part II of “this Act”; sections two to nine; in section eleven the words “or are goods to which “an order made under Part II “of this Act applies.”
16 & 17 Geo. 5. c. 22.	The Finance Act, 1926.	Proviso (a) of subsection (1) of section twenty-nine (except in relation to the year 1929–30).

CHAPTER 29.

An Act to extend section forty-seven of the Workmen's Compensation Act, 1925, to industries involving exposure to asbestos dust, and to amend the provisions of that section relating to medical arrangements and examinations.

[1st August 1930.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. Section forty-seven of the Workmen's Compensation Act, 1925 (which provides for the application of that Act to workmen suffering from silicosis), shall

Extension
of 15 & 16
Geo. 5. c. 84.
s. 47, to

industries
involving
exposure to
asbestos
dust.

extend to industries and processes involving exposure to asbestos dust; and accordingly the amendments specified in the second column of the Schedule to this Act shall be made in the provisions of the said section specified in the first column of that Schedule.

Amend-
ments of
15 & 16
Geo. 5. c. 84.
s. 47.

2.—(1) The powers of the Secretary of State under section forty-seven of the Workmen's Compensation Act, 1925, as extended by this Act, shall include power to make a general scheme applicable to all industries and processes and groups of industries and processes to which compensation schemes apply, for the purposes of co-ordinating the medical arrangements in connection with those compensation schemes; and provision may be made by such a general scheme—

(a) for the establishment of a medical expenses fund to be administered by trustees appointed by the Secretary of State or otherwise as may be provided by the scheme:

(b) for requiring such fees in respect of any examinations made or certificates given under the scheme, as may be prescribed by regulations made by the Secretary of State with the approval of the Treasury, to be paid into the said fund by or on behalf of employers and workmen, and for the recovery of such payments; and for the payment and recovery out of the said fund of any expenses arising in connection with the medical arrangements provided for by the scheme, or with the administration of the medical expenses fund, which are directed by the scheme to be so paid, subject to such exceptions in special cases as may be made by the scheme:

(c) for any of the matters mentioned in paragraphs (d) and (e) of subsection (3) of the said section forty-seven:

(d) for securing that employers—

(i) shall not employ in any industry or process involving exposure to silica dust or asbestos dust any workman who has

been suspended in pursuance of the scheme or has refused or wilfully neglected to submit himself to any examination required in pursuance of the scheme;

(ii) shall make such arrangements in connection with examinations as may be prescribed by the scheme;

(iii) shall give to such medical officer or medical board as may be prescribed by the scheme such notice as may be thereby required of the commencement of any industry or process involving exposure to silica dust or asbestos dust:

(e) for the recovery on summary conviction of monetary penalties in respect of any contravention or failure to comply with the provisions contained in the scheme for securing the matters mentioned in the last foregoing paragraph of this section, so, however, that such penalties shall not exceed five pounds for every day on which the contravention or failure occurs or continues.

(2) The general scheme and any regulations made for the purposes thereof may contain different provisions as respects different industries or processes or groups of industries or processes affected by the scheme or regulations, and subsections (4) and (5) of the said section forty-seven (which relate to the laying of schemes before Parliament and to the notification thereof) shall apply to any such regulations as well as to any scheme.

(3) Any compensation scheme shall, in so far as it provides for any of the matters mentioned in paragraphs (d) and (e) of subsection (3) of the said section forty-seven, have effect subject to the provisions of the general scheme.

(4) In this section the expression "compensation scheme" means a scheme made under the said section forty-seven providing for the payment of compensation by the employers of workmen in the industry or process or group of industries or processes specified therein.

Short title
and con-
struction.

3. This Act may be cited as the Workmen's Compensation (Silicosis and Asbestosis) Act, 1930, and shall be construed as one with the Workmen's Compensation Act, 1925, and this Act and the Workmen's Compensation Acts, 1925 and 1926, may be cited together as the Workmen's Compensation Acts, 1925 to 1930.

SCHEDULE.

CONSEQUENTIAL AMENDMENTS OF 15 & 16 GEO. 5. c. 84. s. 47.

Provision to be amended.	Amendment.
Subsection (1)	After the words "silica dust" there shall be inserted the words "or asbestos dust"; and in paragraph (a) of that subsection, for the words "fibroid phthisis or silicosis" of the lungs, in this section referred to "as 'silicosis' or from that disease" there shall be substituted the words "'sili- 'cosis' (that is to say, fibrosis of the lungs due to silica dust) or from fibrosis of the lungs due to asbestos dust or from either of those diseases"; and in paragraph (b) of that subsection, for the word "silicosis", where that word secondly occurs, there shall be substituted the words "fibrosis of the lungs due to asbestos dust, or from either of those diseases".
Subsection (2)	- For the word "silicosis," where that word secondly occurs, there shall be substituted the words "fibrosis of the lungs, due to asbestos dust, or from either of those diseases".
Subsection (3)	- In paragraph (e) thereof, after the word "dust" there shall be inserted the words "or to asbestos dust"; and for the words "tuberculosis, or silicosis accompanied by" there shall be substituted the words "fibrosis of the lungs due to asbestos dust or from either of those diseases accom- panied by tuberculosis, or from".